

23CMCV01051 23CMCV01051

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-07-09

Motion: DEFENDANT AMERICAN HONDA MOTOR CO., INC.'S MOTION FOR SUMMARY JUDGMENT OR, IN THE ALTERNATIVE, SUMMARY ADJUDICATION BASED ON STATUTE OF LIMITATIONS DATE: July 9, 2026 TIME: 8:30 A.M.

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Case Number: 23CMCV01051 Hearing Date: July 9, 2026 Dept: E

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL
DISTRICT

BEATRIZ

JIMENEZ and MARIA AGUIRRE,

Plaintiff,

vs.

AMERICAN HONDA MOTOR CO.,
INC., a California Corporation; and DOES 1 through 10, inclusive,

Defendants.

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CASE

NO: 23CMCV01051

[TENTATIVE] ORDER RE: DEFENDANT AMERICAN
HONDA MOTOR CO., INC.'S MOTION FOR SUMMARY JUDGMENT OR, IN THE ALTERNATIVE, SUMMARY
ADJUDICATION BASED ON STATUTE OF LIMITATIONS

DATE: July 9, 2026

TIME: 8:30 A.M.

Dept.: E

Moving Party: Defendant
American Honda Motor Co., Inc.

Responding Party: Plaintiffs
Beatriz Jiminez and Maria Aguirre

Notice: OK

Tentative Ruling: Defendant's
Motion for Summary Judgment or, in the Alternative, Summary Adjudication is GRANTED
IN PART and DENIED IN PART.

I.

BACKGROUND

This

is a Song-Beverly action. Plaintiffs Beatriz Jimenez (“Jimenez”) and Maria Aguirre (“Aguirre”)(collectively, the “Plaintiffs”) allege that, on June 11, 2016, they purchased a 2016 Honda Pilot (the “Subject Vehicle”) from Defendant American Honda Motor Co., Inc. (“Defendant” or “Honda”). Plaintiffs allege that the Subject Vehicle came with an express New Vehicle Limited Warranty and further allege that, subsequent to the purchase but during the express warranty period, the Subject Vehicle exhibited serious defects and nonconformities to the warranty, including a transmission defect. Plaintiffs allege that the Subject Vehicle was presented to authorized Honda repair facilities for warranty repairs on multiple occasions but none of the repairs brought the Subject Vehicle in conformity with the express warranty.

On July

13, 2023, Plaintiffs filed the currently operative Complaint asserting causes of action for: (1) Violation of Song Beverly Act - Breach of Express Warranty; and (2) Fraudulent Inducement - Concealment.

On

March 24, 2026, Honda filed the instant Motion for Summary Judgment, or in the Alternative, Summary Adjudication Based on Statute of Limitations.

On June

18, 2026, Plaintiffs filed their Opposition.

On June 29, 2026, Honda filed its

Reply.

II.

ANALYSIS

A.

Legal Standard

The purpose of a motion for summary judgment or summary adjudication “is to provide courts with a mechanism to cut through the parties’ pleadings in order to determine whether, despite their

allegations, trial is in fact necessary to resolve their dispute.” (Aguilar v. Atl. Richfield Co. (2001) 25 Cal.4th 826, 843.) “Code of Civil Procedure section 437c(c), requires the trial judge to grant summary judgment if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.)

“On a motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact.” (Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1519.) A defendant moving for summary judgment or summary adjudication “has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action ... cannot be established, or that there is a complete defense to the cause of action.” (Code Civ. Proc. § 437c(p)(2).) “Once the defendant ... has met that burden, the burden shifts to the plaintiff ... to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Ibid.) “If the plaintiff cannot do so, summary judgment should be granted.” (Avivi v. Centro Medico Urgente Med. Ctr. (2008) 159 Cal.App.4th 463, 467.)

A motion for summary judgment must be granted “if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.” (Code Civ. Proc. § 437c(c).) On the other hand, a motion for summary adjudication must be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty. (Id., § 437(f)(1).)

“When deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inferences that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment.” (Avivi, supra, 159 Cal.App.4th at p. 467; see also Code Civ. Proc. § 437c(c).)

B.

Discussion

Honda

moves for summary judgment or, in the alternative, summary adjudication, on both causes of action alleged in Plaintiffs' Complaint on the grounds that Plaintiffs' claims are time-barred by the applicable four-year statute of limitations under the Song-Beverly Consumer Warranty Act (the "SBA").

Plaintiffs

argue in opposition that Honda has failed to meet its threshold burden because there are triable issues of material fact as to when Plaintiffs knew or should have known of the facts giving rise to their claims. Plaintiffs also contend that because Honda's motion does not include any arguments regarding Plaintiff's fraudulent concealment cause of action, Plaintiff intentionally provides nothing in opposition to this issue.

1.

The

Undisputed Material Facts

PURCHASE OF THE SUBJECT VEHICLE

On June 11, 2016, Plaintiff Beatriz

Jiminez ("Jiminez") purchased a 2016 Honda Pilot from Buena Park Honda.

(Defendant's Undisputed Material Fact ("DUMF") # 1.) Jiminez is listed as the "Buyer" of the Subject Vehicle but was not involved in the decision-making process for the purchase of the Subject Vehicle. (Id., ## 2-3.) Plaintiff Maria Aguirre ("Aguirre") was the primary driver of the Subject Vehicle; Jiminez only drove it one or two occasions. (Id., ## 4-5.)

The Subject Vehicle came with a new

vehicle limited warranty of four years or 50,000 miles and a powertrain

warranty of five years or 60,000 miles. (Id., # 8.) The powertrain

warranty expired no later than October 2020 based on mileage. (Id., #

9.) Plaintiffs' express warranty began when they received the Subject Vehicle on June 11, 2016. (Id., # 10.)

AGUIRRE'S DEPOSITION

During Aguirre's deposition the

following questions were asked, and the following answers were given:

Q: [C]an

you tell me just in general terms the problems with your subject vehicle, the 2016 Pilot, that led you to file the complaint in this matter?

A:

The transmission. From the moment I got in the vehicle, it stated failing me. It would shake terribly on the freeway, and I was really worried. (Id., ## 11, 12.)

. . .

Q: And

about what year was this that you took the vehicle to the dealer or the repair shop where they did not fix it because they told you to take it back out and drive it again to see if you could replicate the issue?

A: I'm

not sure. I think it was the same year. But it was approximately six months after I purchased the vehicle. (Id., # 13.)

. . .

Q: Are

you having any problems right now with the vehicle, any problems requiring repair, in your opinion?

A: Yes,

I wasn't sure if I could go to Honda and take it back to service. But it continues to have the same issues. It shakes because of the transmission. It's the same as when I first purchased it, that the transmission overheats. The engine overheats. (Id., # 14.)

REPAIR HISTORY

Plaintiffs presented the Subject

Vehicle to an authorized repair facility for transmission related concerns four times before April 2019 (Id., # 16):

1)

On February 28, 2018 Plaintiffs presented the Subject Vehicle to Buena Park Honda complaining that the vehicle juddered each time it changed gears (Id., # 17);

2)

On January 23, 2019 Plaintiffs presented the Subject Vehicle to Honda World Downey reporting a hard shift when shifting gears and vehicle feeling like it wants to shut off (Id., # 18); and

3)

On April 29, 2019, Plaintiffs presented the vehicle to Honda World Downey reporting that the transmission juddered at times (Id., # 19).

THE INSTANT MATTER

The Complaint in this matter was filed on July 13, 2023. (Id., # 21.)

2.

Summary

Adjudication as to Plaintiffs' First Cause of Action

Both parties agree, and the Court concurs, that - whether for express or implied warranty - claims brought pursuant to the SBA are governed by the four-year statute of limitations set forth in Uniform Commercial Code ("UCC") § 2275. (Krieger v. Nick Alexander Imports, Inc. (1991) 234 Cal.App.3rd 205, 213-14 ("Krieger"); see also Mexia v. Rinker Boat Co., Inc. (2009) 174 Cal.App.4th 1297, 1306.) UCC § 2725(2)'s discovery rule also applies to claims under the SBA, such that a cause of action under the SBA accrues not on the date of sale but rather when the plaintiff discovers or should have discovered that the warrantor or its authorized repair facility was unable to fix the warranty-covered defects after a reasonable number of repair opportunities. (Krieger, supra, 234 Cal.App.3d at p. 218; UCC § 2725(2).)

Honda contends that Aguirre

testified that she believed there was a problem with the vehicle's transmission from the time she received the vehicle in 2016 and that she had presented the vehicle to a repair facility four times for transmission-related issues by April 2019. Thus, Honda argues, Plaintiffs' causes of action accrued at the latest by April 2019 and Plaintiffs should have filed their lawsuit at the latest by April 2023. As to any delayed discovery, Honda argues that Plaintiffs are not entitled to assert delayed discovery because Aguirre testified to noticing issues with the transmission as early as 2016, considered the issue "worrisome" during the first few months of ownership in 2016.

Upon

review of the undisputed material facts, the Court determines that Honda has met its initial burden to show that there are no triable issues of material fact as to when Plaintiffs' causes of action accrued and the running of the statute of limitations. Plaintiffs discovered or should have discovered that Honda or its authorized repair facility was unable to fix the transmission defect after a reasonable number of repair opportunities by April 2019 when Plaintiff had taken the vehicle to an authorized repair facility multiple times for the transmission issues (see DUMF ## 16-19.). Aguirre testified that the transmission had issues from the time she got the vehicle in 2016 (see DUMF # 11, 13 (Subject Vehicle exhibited transmission defects from the "moment [Aguirre] got the vehicle" and was presented for transmission repair six months after purchase)) and Honda's undisputed evidence shows repair orders from 2018 through April 29, 2019. (See DUMF ## 1, 11-19.) Furthermore, Honda presents as an undisputed material fact that the transmission issues persisted even after the four aforementioned repair attempts. (See DUMF # 14.) Honda has therefore presented evidence establishing that Plaintiffs knew or should have known of their cause of action as of at least April 29, 2019, leading to the conclusion that the statute of limitations on Plaintiffs' causes of action ran four years later, on April 29, 2023.

The

burden now shifts to Plaintiffs to show the existence of triable issues of one or more material facts. However, Plaintiffs have not shown the existence of a triable issue of material fact. The evidence presented by Plaintiffs does not create any question as to whether Plaintiffs were aware or should have been aware of Honda's inability to repair the subject vehicle's transmission issues by April 29, 2019 at the latest. Instead, Plaintiffs cite to Aguirre's

deposition testimony that it was only after the Subject Vehicle's transmission replacement in October or November 2021 and subsequently experiencing issues with the transmission that Aguirre contacted Honda's customer service only to be laughed at and told the Subject Vehicle was too old. (Kenny Decl., ¶15, Exh. E at pp. 26:14-38:16.) But the question is not when Aguirre contacted Honda's customer service after experiencing continued transmission problems, the question is whether Aguirre knew or had reason to know by April 2019 that Honda or its authorized repair facility was unable to fix the transmission issue after a reasonable number of repair opportunities. Plaintiffs' evidence of continued transmission problems two or three years prior to Aguirre's deposition in 2024 does not serve to contradict or create a triable issue of material fact regarding Plaintiff's knowledge in April 2019. Plaintiffs present nothing to contradict the inference that Plaintiff had reason to know of the Subject Vehicle's transmission issues as early as 2016 and of Honda's inability to repair after the four repair attempts culminating in April 2019. Accordingly, the Court determines that Plaintiffs have not presented evidence sufficient to establish the existence of a triable issue of material fact as to whether the statute of limitations bars Plaintiffs' Complaint. Plaintiffs knew or should have known of the facts giving rise to their causes of action by no later than April 2019 and Plaintiff's Complaint should therefore have been filed by April 2023. Because the instant matter was not filed until July 2023, the statute of limitations has run.

In accordance with the above, the Court GRANTS Honda's Motion for Summary Adjudication as to Plaintiff's First Cause of Action for Violation of Song-Beverly Act – Breach of Express Warranty.

2.

Summary

Adjudication as to Plaintiffs' Second Cause of Action

Plaintiffs are correct when noting in their Opposition that, while Plaintiffs' Second Cause of Action for Fraudulent Inducement – Concealment is mentioned in Honda's Notice of Motion, Honda does not substantively address Plaintiff's Second Cause of Action in its motion. Indeed, the body of Honda's motion continually references Plaintiffs' "sole" or "only" claim as being the First Cause of Action brought pursuant to the SBA. (See, e.g., Mot., p. 5:11-12 ("Here, Plaintiffs' single remaining claim is barred by the statute of limitations and is not subject to tolling"); see also id., p. 6:13 ("It is undisputed that Plaintiffs' only

claim is facially untimely”).) Honda does not even set forth the applicable statute of limitation for Plaintiff’s Second Cause of Action, much less make any substantive argument as to its application to the facts at hand. (See, generally, Motion.)

“[F]ailure to offer reasoned analysis of [an] issue constitutes a waiver.”

(Trinity Risk Management, LLC v. Simplified Labor Staffing Solutions, Inc. (2021) 59 Cal.App.5th 995, 1009; see also In re Marriage of Falcone & Fyke (2008) 164 Cal.App.4th 814, 830 (“The absence of cogent legal argument or citation to authority allows this court to treat the contentions as waived”).) Because Honda has not set forth any reasoned analysis or citation to authority as to the statute of limitations applicable to Plaintiffs’ Second Cause of Action, the Court determines that (for the purposes of this motion) Honda has waived its contention that Plaintiffs’ Second Cause of Action is barred by the applicable statute of limitations.

Honda’s motion for summary adjudication as to Plaintiff’s Second Cause of Action for Fraudulent Inducement – Concealment is DENIED.

II.

CONCLUSION

Honda’s Motion for Summary Adjudication is GRANTED as to Plaintiffs’ First Cause of Action for Violation of Song-Beverly Act – Breach of Express Warranty.

Honda’s Motion for Summary Adjudication is DENIED as to Plaintiffs’ Second Cause of Action for Fraudulent Inducement – Concealment.